

****Hearing of the President of the Authority for the Protection of Personal Data - Government Bill Containing Provisions on Public Security, Protection of Personnel in Service, as well as Victims of Usury and Prison Regulations (AC 1660)****

Chamber of Deputies - Joint Committees I and II (Constitutional Affairs and Justice)
(16 May 2024)

- THE VIDEO OF THE HEARING

I thank the Committees for this opportunity to discuss the bill which, I can already anticipate, does not present any particular issues regarding data protection. The overall balance outlined by the provisions of the measure seems, in general, to be in line with the principle of proportionality between security needs and the protection of personal data, which has been the foundation of a well-established jurisprudence of the Court of Justice, as well as the European Court of Human Rights (ECHR).

To get straight to the point, I will specify that I will analyze exclusively the provisions of the bill that affect, in varying degrees and for different reasons, the protection of data. From this perspective, Article 4 is particularly relevant, aimed at raising the level of protection for justice collaborators, impacting potentially critical aspects for the consistency and efficiency of the "protection system."

Paragraph 1, in particular, amending Article 13 of Decree-Law No. 8 of 1991, allows the use of the cover document provided therein also by collaborators and family members subjected to forms of extramural detention (letter a). The same provision also allows the Central Protection Service – where it is necessary to carry out particular acts or perform specific activities of a confidential nature – to use such documents and create cover tax identities, including corporate types, in order to ensure the functionality, confidentiality, and security of the application of special protection measures.

Article 4, paragraph 1, letter b), number 2, of the text then provides that a "confidential register shall be kept at the same Central Protection Service, certifying the times, procedures, and reasons for the authorization for the issuance of the document, and any other documentation related to the creation of cover tax identities, including corporate types."

Overall, therefore, the amendments pursue a legitimate and commendable goal such as the extension of protection for justice collaborators by broadening the range of adoptable measures and their prerequisites, ensuring a control that the norm envisions as adequate for the management of the measures themselves. Naturally, this will need to be guaranteed through constant verification of the correct use of the measures and their possible revocation, in order to always ensure the necessary alignment of the documents with respect to the created cover identities.

Another provision of interest is Article 23, which, in amending Law No. 124 of 2007, makes the collaboration of public administrations, companies with public participation or control, and entities providing public utility services under authorization, concession, or agreement mandatory in favor of the Intelligence and Security Agencies. The norm also provides for the possibility of defining such information procedures through agreements that may allow for the "communication of information [...] even in derogation of sector regulations regarding confidentiality" (paragraph 1, letter a), number 1).

The reference to confidentiality should be understood – placing the norm within the legal context in which it is inscribed and the parameters of Law No. 124 – with regard to aspects different from the regulation of personal data protection. This is not only for nominal reasons but also because Article 58 of the Personal Data Protection Code already introduces a derogatory regulation, with general validity, of the processing of personal data by the Agencies for national security purposes. Therefore, the processing of personal data functional (or connected) to such communications should be framed within this general context, also considering that the introduced derogation refers to "sector regulations regarding confidentiality" and not, instead, to a general one such as that of Article 58 of the Code.

The same article, in paragraph 4, letter a), also amends Legislative Decree No. 186 of November 8, 2021, concerning financial information that can be acquired for counter-terrorism purposes by the Intelligence and Security Services (Articles 6 and 7 of Law No. 124). In particular, it legitimizes the Services to request from the Financial Police and the Anti-Mafia Investigation Directorate the

information and financial analyses provided for in Article 2, paragraph 1, letters c) and d), of the same Legislative Decree No. 186 of 2021, concerning, "[...] any type of information or data, such as data on financial activities, fund movements, or commercial financial relationships, already held by the financial intelligence units (FIUs) [...], as well as [...] the results of operational and strategic analyses already conducted by the FIUs."

The amendment aims to fill an informational gap related to needs linked to selective objectives, by including AISE and AISI within the existing cooperation circuit among the police forces referred to in Article 14 of the aforementioned Legislative Decree No. 186 of 2021.

The inclusion, among the entities authorized to access the data on statements, of authorities tasked with prevention functions such as, indeed, the Agencies, thus appears consistent with the provisions of Directive 2019/1153 implemented by Legislative Decree No. 186 of 2021 and with the same emphasis expressed, on this point, by the Guarantor in its opinion (No. 307 of 2021) on the draft legislative decree.

Article 24, finally, sets forth provisions regarding support for economic operators who are victims of usury, providing – with the introduction of Article 14-bis to Law No. 108 of March 7, 1996 – for the establishment, at the Office of the Extraordinary Commissioner for the coordination of anti-extortion and anti-usury initiatives, of a register of experts to assist economic operators who are victims of usury for their reintegration into the legal economic circuit. The provision also regulates the tasks, incompatibilities, expiration, duration of the appointment, and compensation of such experts (paragraphs 1 and 2).

In addition to the declarations regarding the absence of the prohibitive conditions referred to in Article 67 of the Anti-Mafia Code (paragraphs 3 and 8) – the expert appointed, pursuant to paragraph 10, is obliged to maintain confidentiality regarding the facts and documents of which he or she becomes aware by virtue of the functions performed.

Finally, the provision delegates to a specific regulation, to be adopted by decree of the Minister of the Interior (in agreement with the Ministers of Justice and Economy and Finance), the definition of detailed regulations regarding the requirements for registration in the Register of Experts, the limits of the appointments, the methods of appointment with the related criteria of transparency, and the maintenance and management of the same Register (paragraph 16).

The norm could be, on this point, supplemented by providing for the submission of the draft regulation to the opinion of the Guarantor pursuant to Article 36, paragraph 4, of Regulation (EU) 2016/679, to verify the compatibility of the transparency obligations that will be introduced with the regulation on the protection of personal data.

The Guarantor may, indeed, also in that context offer its contribution to the definition, in a manner consistent with European and domestic data protection legislation, of the balance between transparency needs and the right to the protection of personal data of the interested parties, with particular regard to categories of data, such as those relating to criminal convictions and offenses, which may be relevant in relation to the prohibitive requirements for registration in the register, as referred to in paragraph 3 of Article 14-bis, introduced precisely by Article 24 of the draft law.

Thank you.